

question of immunity raised in this case therefore must begin, not with a rote recitation of the *Harlow* standard, but with an examination of the cause of action that brought the immunity question now before us into play in the first instance.

As every student of federal jurisdiction quickly learns, the Court in *Bivens v. Six Unknown Fed. Narcotics Agents*, 403 U. S. 388, 397 (1971), held that Bivens had a cause of action against federal agents "to recover money damages for any injuries he has suffered as a result of the agents' violation of the [Fourth] Amendment." In addition to finding that no cause of action was available, the District Court in that case had relied on the alternative holding that respondents were immune from liability because of their official position. Because the Court of Appeals for the Second Circuit had not passed on this immunity ruling, we did not consider it. *Id.*, at 397-398. On remand, in *Bivens v. Six Unknown Named Agents of Federal Bureau of Narcotics*, 456 F. 2d 1339, 1348 (1972), the Court of Appeals articulated a dual standard of reasonableness. As an initial matter, the Court rejected the agents' claim under *Barr v. Matteo*, 360 U. S. 564 (1959), which had recognized immunity for an official who performs "discretionary acts at those levels of government where the concept of duty encompasses the sound exercise of discretionary authority." *Id.*, at 575. The Second Circuit wisely noted that it "would be a sorry state of affairs if an officer had the 'discretion' to enter a dwelling at 6:30 A.M., without a warrant or probable cause" 456 F. 2d, at 1346. That court nevertheless recognized the need to balance protection of the police from "the demands of every person who manages to escape from the toils of the criminal law" against the "right of citizens to be free from unlawful arrests and searches." *Id.*, at 1347. According to the Second Circuit, the officer "must not be held to act at his peril"; to obtain immunity he "need not allege and prove probable cause in the constitutional sense." *Id.*, at 1348. Instead, an agent